ACT #2026-378 CA

HB380

BYRBKJQ-3

By Representative Collins (Constitutional Amendment)

RFD: Education Policy

First Read: 03-Feb-26

Enrolled, An Act,

Proposing an amendment to the Constitution of Alabama of 2022, to provide a process for the creation of a consolidated county school system by merging two or more county boards of education; to require the State Board of Education to conduct an impact study on the potential effects of the consolidation; to require publication of the impact study; to provide a procedure for protesting a proposed consolidation of two or more county school systems; and to require the State Board of Education to adopt rules.

BE IT ENACTED BY THE LEGISLATURE OF ALABAMA:

Section 1. The following amendment to the Constitution of Alabama of 2022, is proposed:

PROPOSED AMENDMENT

(a) Whenever two or more contiguous county boards of education deem it advisable to consolidate the administration of their respective county school systems under one remaining controlling multi-county board of education, each county board of education shall adopt and record within the minutes of each board an agreement providing for the consolidation. A formal resolution adopted by all members of the agreeing boards shall detail and provide for the payment of their respective indebtedness, specify how the consolidation will take place, identify how the remaining controlling multi-county board of education will operate, provide for the roles and duties of the resulting multi-county board members, and designate the time frame during which the consolidation will be implemented.

Subject to subsection (c), the consolidation shall be finalized as designated in the formal resolution.

(b) Before a consolidation may occur, the State Board of Education shall conduct an impact study on the potential effects of the proposed consolidation, including, but not limited to, the impact on students, families, educational quality, educational programs, staff, facilities, transportation and operations, finances and taxes, community identity, and governance. At least 30 calendar days before adopting the formal resolution finalizing the consolidation, the State Board of Education shall post a copy of the impact study on the public website of the State Department of Education.

(c)(1) If, within 30 days after the adoption of the formal resolution, 25 percent of the qualified electors residing within the boundaries of any of the school systems proposing consolidation submit a protest, in writing, to any of the affected county boards of education, the consolidation may not occur unless the consolidation is approved by a majority of the qualified electors residing in each county or counties wherein all affected county school systems are located who vote in a referendum election as provided in this subsection.

(2) The consolidation shall become operative only if approved by a majority of the qualified electors who reside within the combined territory of the affected county school systems who vote in a referendum election to be held on the date of the next regularly scheduled general election. The

order setting the election shall be entered by the judge of probate of each affected county within one month after the expiration of the 30-day time period provided in subdivision (1). Notice of the election shall be given by the judge of probate of each county, and the election shall be held, conducted, and the results canvassed in the manner as other county elections. The ballots shall have printed at the top a statement of the purpose of the referendum election and directly underneath, in plain type and on different lines, the words, "For Consolidation," and "Against Consolidation." If a majority of the qualified electors voting in the combined territory of the affected county school systems vote to approve the consolidation, the consolidation shall be finalized as designated in the formal resolution.

(d) The consolidation shall not operate to relieve any board of education, or other governing body, of liability for obligations previously incurred, or to impair rights existing before the consolidation. The agreement and formal resolution shall be binding on the combining county boards of education. If a consolidation occurs, the remaining controlling multi-county board of education shall have the right to compel the execution of contractual obligations made to any of the boards before the consolidation.

(e) The State Board of Education shall adopt rules as necessary to provide for the implementation of this section.

(f) The Legislature, by general or local law, may enact legislation to implement approved board consolidations pursuant to this section.

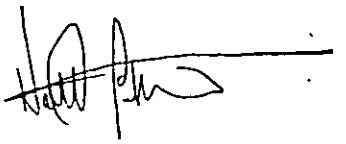
Upon ratification of this constitutional amendment, the Code Commissioner shall number and place this amendment as appropriate in the constitution omitting this instructional paragraph and may make the following nonsubstantive revisions: change capitalization, hierarchy, spelling, and punctuation for purposes of style and uniformity; correct manifest grammatical, clerical, and typographical errors; revise internal or external citations and cross-references; harmonize language; and translate effective dates.

END OF PROPOSED AMENDMENT

Section 2. An election upon the proposed amendment shall be held in accordance with Sections 284 and 285 of the Constitution of Alabama of 2022, and the election laws of this state. The appropriate election official shall assign a ballot number for the proposed constitutional amendment on the election ballot and shall set forth the following description of the substance or subject matter of the proposed constitutional amendment:

"Proposing an amendment to the Constitution of Alabama of 2022, to provide a process for the creation of a consolidated county school system by merging two or more contiguous county boards of education; to require the State Board of Education to conduct an impact study on the potential effects of the consolidation; to require publication of the impact study; to provide a procedure for protesting a proposed consolidation of two or more county school systems; and to require the State Board of Education to adopt rules.

Proposed by Act ____."



Speaker of the House of Representatives



President and Presiding Officer of the Senate

House of Representatives

I hereby certify that the within Act originated in and was passed by the House 03-Mar-26.

John Treadwell
Clerk

Senate **08-Apr-26** Passed

Alabama Secretary Of State

Act Num....: 2026-378
Bill Num...: H-380

Recv'd 04/09/26 09:56amKCW

CHN ED

SPONSOR

Collins

CO-SPONSORS

/

HOUSE ACTION

I HEREBY CERTIFY THAT THE RESOLUTION AS REQUIRED IN SECTION C OF ACT NO. 81-889 WAS ADOPTED AND IS ATTACHED TO THE BILL, H.B. 380

YEAS 100 NAYS 1

JOHN TREADWELL, Clerk

I HEREBY CERTIFY THAT THE NOTICE & PROOF IS ATTACHED TO THE BILL, H.B._____ AS REQUIRED IN THE GENERAL ACTS OF ALABAMA, 1975 ACT NO. 919.

JOHN TREADWELL, Clerk

CONFERENCE COMMITTEE

House Conferees_____

_____

_____

SENATE ACTION

DATE:	3-3 20 24
RD 1 RFD	ED

This Bill was referred to the Standing Committee of the Senate on ED Policy and was acted upon by such Committee in session and is by order of the Committee returned therefrom with a favorable report w/amend(s)____ w/sub____ by a vote of yeas 9 nays 0 abstain 0 this 5 day of April 20 24

_____, Chair

DATE:	4-1 20 26
RF	FAV **RD 2 CAL**

DATE: 20___

RE-REFERRED ☐ RE-COMMITTED ☐

Committee_____

I hereby certify that the Resolution as required in Section C of Act No. 81-889 was adopted and is attached to the Bill, HB_____.

YEAS_____ **NAYS**_____

PATRICK HARRIS,
Secretary

FURTHER SENATE ACTION (OVER)